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Tentative Ruling

Re: **Christopher McIntosh v. Brandon Knight**
Superior Court Case No. 21CECG01109

Hearing Date: September 17, 2026 (Dept. 502)

Motion: By Defense Counsel to Withdraw

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 9-16-26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Johan Legarda v. Madera Roofing, Inc.***
Superior Court Case No. 24CECG02472

Hearing Date: September 17, 2026 (Dept. 502)

Motion: Plaintiff, Johan Legarda's motion for an evidence sanction, for adverse-inference jury instruction under Evidence Code section 413 and CACI no. 204, for orders in limine, and for monetary sanctions

Tentative Ruling:

To deny plaintiff, Johan Legarda's motion for an evidence sanction, for adverse-inference jury instruction under Evidence Code section 413 and CACI no. 204, and for orders in limine.

To deny all requests for sanctions.

Explanation:

Plaintiff, Johan Legarda ("Legarda" or plaintiff") claims that on March 2, 2023, he was struck by a roll of roofing paper while working for Fire Sprinkler Systems at the Skye at River Island Ranch home site, Lot 207, which now bears the address of 3750 N. Clay Street, Visalia, California.

Defendant, Madera Roofing, Inc., ("Madera Roofing" or "defendant") did not secure that specific roll as evidence (Thordarson Decl., ¶19), nor did Madera Roofing create a report, take any photographs of the scene, or otherwise preserve any evidence. (Beedlove Decl., ¶14.)

As a result of Madera Roofing not preserving that specific roll of roofing paper, Legarda moves the court for a) evidentiary sanctions; b) adverse-inference jury instructions; c) orders in limine; and d) monetary sanctions.

Evidentiary Sanctions

Plaintiff requests an evidence sanction under Code of Civil Procedure sections 2023.010 and 2023.030, subdivision (c), precluding Madera Roofing from offering any testimony, evidence, or argument concerning the weight, dimensions, packaging, condition, or contents of the roll, or the cause or mechanism by which it left the roof.

Pursuant to Code of Civil Procedure section 2023.030, the Court may impose the types of sanctions requested depending on the misconduct that occurred. In general, a nonmonetary sanction is only appropriate after a party fails to obey an order compelling discovery. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1426.) However, such relief may be imposed without a prior order compelling discovery if

obtaining such an order would be futile or the misconduct in connection with the failure to produce evidence in discovery is “sufficiently egregious.” (*Ibid.*)

Spoliation of evidence is the destruction or significant alteration of evidence or the failure to preserve evidence for another’s use in pending or future litigation. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223 (“*Williams*”).) The elements to establish spoliation of evidence are (1) destruction or alteration of relevant evidence, (2) a duty to preserve the evidence; (3) willful conduct by the spoiling party; and (4) relevance of the evidence to pending or anticipated litigation. (*Victor Valley Union High Sch. Dist. v. Superior Ct.* (2023) 91 Cal.App.5th 1121, 1139.)

“[A] party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact had destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (*Williams, supra*, 167 Cal.App.4th at p. 1227.) Once the moving party meets that burden, the burden shifts to the responding party to prove the moving party did not suffer prejudice from the loss of the evidence. (*Williams, supra*, 167 Cal.App.4th at pp. 1226-27.) Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

Legarda argues that evidentiary sanctions are warranted where Madera Roofing willfully disposed of the roll in question. Legarda first argues that Madera roofing purposely did not keep the roll in question where Sanchez, the Madera Roofing supervisor who fielded the incident call, admitted—testifying through a certified Spanish-language interpreter—that he made a conscious decision not to secure the roll as evidence, reasoning that “there was no need to keep any evidence if the person was refusing medical attention.” (Thordarson Decl. ¶ 9, Ex. 7 [Sanchez Dep. at 23:11-24:2].)

The relevant quote in question states as follows:

THE INTERPRETER: Counsel, just to clarify, secure as in put it in the office? I’m not sure how to --
MR. THORDARSON: (Speaking Spanish.)
THE SPANISH INTERPRETER: Okay. Keep it as evidence.
THE WITNESS: No because the person said that was [sic] fine, had no injuries. Juan Lopez just said to be careful. Oscar Ramirez came down and asked the person several times if he was fine, if he needed medical attention, and based on that, there was no need to keep any evidence if the person was refusing medical attention.

(Thordarson Decl. ¶ 9, Ex. 7 [Sanchez Dep. at 23:15-24:2].)

Legarda further contends the fact that Madera Roofing disposed of the roll knowing that a fight had broken out on site, with the awareness that Plaintiff was injured, and knew or should have known that litigation was contemplated, because the GC, Lennar’s, incident report form is

preprinted with "PREPARED AT DIRECTION OF COUNSEL." (Thordarson Decl. ¶ 18, Ex. 10.) However, Legarda has failed to demonstrate spoliation of evidence, because he has no evidence that Madera Roofing "willfully disposed" of "relevant evidence."

In *Williams*, the plaintiff stored all 36 boxes containing the original documents comprising his former counsel's files in a rented storage facility. The attorney only had copies of 11 boxes worth of material. The plaintiff eventually stopped paying the rental fees, despite being advised by the facility that failure to pay could result in the destruction of the stored items. The files were ultimately destroyed by the facility due to nonpayment. The plaintiff claimed he was never told the files were at risk of destruction. If he had known of the risk, he would have kept the account current. Nevertheless, the appellate court affirmed the trial court's award of terminating sanctions finding that the plaintiff understood litigation and his duties, and he was on notice that nonpayment would result in destruction of the file, yet he allowed it to happen. Based on those circumstances, the court found that the destruction was intentional and inferred that it was done to destroy evidence potentially favorable to Russ. (*Williams*, *supra*, 167 Cal.App.4th at pp. 1218-1221.)

In contrast, here Sanchez's testimony does not establish that Madera Roofing or its agents knew that litigation was imminent such that the use of the shingles in the ordinary course of business constituted "willful" destruction of evidence. Legarda refused medical assistance and stated he was uninjured. A scuffle on a construction site does not ordinarily result in litigation. Nor can the language of the general contractor's preprinted form establish Madera Roofing's state of mind as to the likelihood of litigation.

Furthermore, Legarda has not shown that the loss of the roll in question had a "substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (*Williams*, *supra*, 167 Cal.App.4th at p. 1227.) The roll of roofing paper can easily be replicated because it is a product that is mass produced. (Hisa Decl., ¶ 6.) Defendant has exemplars and can make them available for Plaintiff's inspection if such a demand was made. (*Ibid.*) Furthermore, Legarda's himself took pictures of the pertinent roll, and one can approximate the size of the roll based on those pictures. (Thordarson Decl., ¶ 5, Ex. 3.) Additionally, the absence of the roll has no bearing with respect to the discussion pertaining to whether the roll, rolled off the roof or was thrown off the roof, or whether Madera Roofing had a rule against throwing rolls off the roof. (Legarda's Moving papers, pp.5:23-7:1.)

Accordingly, the Court denies the imposition of evidentiary sanctions.

Adverse-Inference Jury Instructions

Plaintiff seeks an adverse-inference instruction under Evidence Code section 413 and CACI No. 204.

As discussed above, Plaintiff has failed to demonstrate that Madera Roofing intentionally destroyed relevant evidence. Nonetheless, Plaintiff can ask for a spoliation instruction under CACI 204 at trial, should such evidence develop. (*New Albertsons*, *supra*, 168 Cal.App.4th at 1431.) CACI 204 provides, "You may consider whether one party intentionally concealed or destroyed evidence. If you decide that a party did so, you may decide that the evidence would have been unfavorable to that party."

Evidence Code section 413 provides, "In determining what inferences to draw from the evidence or facts in the case against a party, the trier of fact may consider, among other things, the party's failure to explain or to deny by his testimony such evidence or facts in the case against him, or his willful suppression of evidence relating thereto, if such be the case."

Orders In Limine

Legarda requests two in limine orders. First, the Fresno Superior Court prefers motions in limine be heard at the time of trial. (Fresno Local Rules, rule 2.6.2.) Second, the nature of an in limine motion on the admissibility of evidence and/or the inferences to be drawn from the evidence and various jury instructions to be given requires that they be issued by the trial judge at the time trial. In limine rulings are necessarily tentative and impermanent due to the fluid nature of taking evidence. (Rufo v. Simpson (2001) 86 Cal.App.4th 573, 608; People v. Turner (1990) 50 Cal.3d 668, 708.) In this Court, civil cases can be assigned to any available trial judge, which may or may not be the judge previously assigned for all purposes.

As such, Legarda's current request for in limine orders is denied

Sanctions

Legarda's seeks monetary sanctions in favor of Plaintiff and against Madera Roofing in the amount of \$2,625.00 pursuant to Code of Civil Procedure sections 2023.010 and 2023.030. (Moving Papers, pg. 18:17-18.) Defendants also seek monetary sanctions in the amount of \$3,385.00, pursuant to Code of Civil Procedure section 2023.010, subdivisions (b), (c) and (h).

Here, Legarda's request for sanctions are denied as he did not prevail in his motion. Furthermore, the Court denies Madera Roofing's request for sanctions. The Court finds that Legarda acted with substantial justification, and made reasonable arguments in support of his position. No sanctions are appropriate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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